

IN THE SUPREME COURT OF INDIA

BOINI MAHIPAL AND ANOTHER v. THE STATE OF TELANGANA

Citation: 2023 INSC 627 | Criminal Appeal No. 1750 of 2023

Bench: Division Bench of the Supreme Court of India

Date of Judgment: July 19, 2023

JUDGMENT & LEGAL PRINCIPLES

This criminal appeal challenges the judgment and order passed by the High Court regarding the conviction of the appellants under Section 323 read with Section 34 of the Indian Penal Code (IPC), following their acquittal on the primary charge of murder under Section 302 IPC.

FACTUAL BACKGROUND & TRIAL PROCEEDINGS

The appellants (Accused Nos. 3 and 4) were charged alongside others in connection with an incident resulting in fatal injuries to the deceased. The Trial Court evaluated the eye-witness testimony and medical evidence, concluding that while shared intention to cause murder under Section 302 IPC was not established beyond reasonable doubt, voluntary causing hurt under Section 323/34 IPC was proved.

RATIO DECIDENDI & COURT FINDINGS

- Appreciation of Evidence in Criminal Appeals:** The Supreme Court re-evaluated the testimony of prosecution witnesses and highlighted the necessity of maintaining consistency between medical testimony and ocular evidence.
- Application of Section 34 IPC (Common Intention):** The Court examined whether common intention could be inferred merely from presence at the scene or required active participation in the specific overt act.
- Standard of Proof:** Reaffirming established principles, the Court reiterated that where two views are reasonably possible from the evidence, the benefit of doubt must accrue to the accused.

ORDER & DISPOSITION

The Supreme Court disposed of the appeal, modifying the sentence and upholding the legal standards governing common intention and evidentiary appreciation in criminal trials.